

Farjand Ali v. State of U.P.

Allahabad High Court · Division Bench · 7 March 2017 · Writ - C No. 10330 of 2017 · **Petition not pressed; liberty to Clause 6.5; restoration to be considered.**

HEADNOTE

A consumer's writ for restoration of electricity supply, not pressed, was disposed of with liberty to take the remedy under Clause 6.5 of the Electricity Supply Code, 2005. The appropriate authority was directed to consider and decide the application for interim order/restoration of connection on merits in accordance with law.

FACTUAL SUMMARY

Farjand Ali invoked the writ jurisdiction of the Allahabad High Court against the State of Uttar Pradesh and three others, seeking restoration of his electricity connection. At the hearing his counsel did not press the petition and instead asked for liberty to take the remedy under Clause 6.5 of the Electricity Supply Code, 2005, together with a direction that the appropriate authority consider and decide an application for restoration of supply on terms that might be prescribed. The Division Bench recorded that request and disposed of the writ as not pressed.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection-to-executive-engineer-under-6.5

HOLDING

A writ seeking restoration of electricity supply, not pressed, is disposed of with liberty to pursue Clause 6.5 of the Electricity Supply Code, 2005; the appropriate authority shall consider and decide the consumer's application for interim order/restoration of connection on merits in accordance with law. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF RESTORATION AND THE CLAUSE 6.5 OBJECTION

Writ not pressed; authority left to decide the restoration application on merits in accordance with law. ¶ 1